



Florida Department of Environmental Protection

470 Harrison Avenue
Panama City, Florida 32401

Rick Scott
Governor

Carlos Lopez-Cantera
Lt. Governor

Jonathan P. Steverson
Secretary

November 17, 2015

Ms. Kathy Sloan
Vice President
Dolomite, Incorporated
Post Office Box 1568
Marianna, Florida 32447
sloand54@hotmail.com

Re: Compliance Assistance Offer
Dolomite Incorporated
Facility ID No. FL0101192
Jackson County

Dear Ms. Sloan:

A compliance inspection was conducted at your facility on July 15, 2015, under the authority of Section 403.091, Florida Statutes (F.S.). During this inspection, potential non-compliance with the requirements under Chapter 403, F.S., and Chapter 62-620, Florida Administrative Code (F.A.C.), were observed. The purpose of this letter is to offer you compliance assistance as a means of resolving these matters.

Please see the attached inspection report for a full account of Department observations and recommendations. We request you review the items of concern noted in the attached inspection report and respond in writing within **15 days** of receipt of this Compliance Assistance Offer. Your written response should either:

1. Describe what you have done or provide a time schedule to address the items of concern noted in the attached report (see "Recommendations for Corrective Action" section of the report),
2. Provide information that either mitigates the concerns or demonstrates them to be invalid, or
3. Arrange for one of our inspectors to visit your facility to discuss the items of concern.

It is the Department's desire that you are able to adequately address the items of concern so that this matter can be closed. Your failure to respond appropriately may result in the initiation of formal enforcement proceedings.

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Please address your response and any questions to Josie Penton of the Northwest District Office at (850) 767-0045 or via e-mail at josie.penton@dep.state.fl.us. We look forward to your cooperation with this matter.

Sincerely,

A handwritten signature in black ink, appearing to read 'B. Blitch', with a long horizontal flourish extending to the right.

Benjamin A. Blitch, P.E.
Assistant District Director
Northwest District

BAB/jp/c

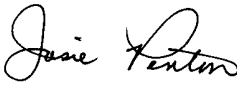
Enclosures: Inspection Report Form
 Inspection Report Summary

ec: Kim Allen, DEP Pensacola Office; kim.allen@dep.state.fl.us
 Krista McGraw, DEP Pensacola Office; krista.mcgraw@dep.state.fl.us
 Bill Evans, DEP Pensacola Office; bill.evans@dep.state.fl.us

FLORIDA DEPARTMENT OF ENVIRONMENTAL PROTECTION

WASTEWATER COMPLIANCE INSPECTION REPORT

FACILITY AND INSPECTION INFORMATION

Name and Physical Location of Facility: Dolomite Incorporated 1321 Hwy 71 Marianna, FL 32448		WAFR ID: FL0101192		County: Jackson		Entry Date/Time: 7/15/15 8:34 AM	
				Phone: (850) 482-5570		Exit Date/Time: 7/15/15 10:47 AM	
Name(s) of Field Representative(s): Mr. David Thompson		Title: Manager		Phone: N/A			
Name and Address of Permittee or Designated Representative: Ms. Kathy Sloan Dolomite Incorporated 1321 Hwy 71 Marianna, FL 32448		Title: Vice President		Phone: (850) 482-5570			
Inspection Type:	C	E	I	Samples Taken? (Y/N):	N	Sample ID:	N/A
Domestic	X	Industrial		Were Photos Taken? (Y/N):	N	Logbook Volume:	I
Advance Notification Required (Security)					X	Facility Notified in Advance of Inspection	
FACILITY COMPLIANCE AREAS EVALUATED IC: In Compliance; MC: Minor Non-Compliance; NC: Out of Compliance; SC: Significantly Out of Compliance; NA: Not Applicable; NE or Blank: Not Evaluated Significant Non-Compliance Criteria Should be Reviewed When Out of Compliance Ratings Are Given in Areas Marked by a "♦"							
PERMITS/ORDERS		SELF MONITORING PROGRAM		FACILITY OPERATIONS		EFFLUENT/DISPOSAL	
IC	1. ♦Permit	IC	3. Laboratory	IC	6. Facility Site Review	IC	9. ♦Effluent Quality
NA	2. ♦Compliance Schedules	IC	4. Sampling	IC	7. Flow Measurement	NC	10. ♦Effluent Disposal
		IC	5. ♦Records & Reports	IC	8. ♦Operation & Maintenance	NA	11. Biosolids/Sludge
						NA	12. Groundwater
	14. Other					NA	13. SSO Survey
Facility and/or Order Compliance Status:			In Compliance	X	Out of Compliance		Significantly Out of Compliance
Recommended Actions: See Inspection Report Summary below							
Name(s) and Signature(s) of Inspector(s) C. Mark Sumner 				District Office/Phone Number NWDP/(850) 767-0046		Date 11/5/2015	
Signature of Reviewer Josie Penton 				District Office/Phone Number NWDP/(850) 767-0045		Date 11/13/2015	
Single Event Violation Code(s):							

INSPECTION REPORT SUMMARY

Facility Name: Dolomite Incorporated
Facility ID: FL0101192
Inspection Type: CEI
Inspection Date: July 15, 2015

FACILITY BACKGROUND:

Facility Address: 1321 Hwy 71 Marianna, Florida 32448

Program/Permit Information: IW, permit issue date: September 27, 2013, expiration date: September 26, 2018

Treatment Summary: The man-made lake flows in a southeasterly direction through a narrow channel into a small lake that serves as a final sedimentation basin. The water flows from this basin over three Rip-Rap turbidity barriers and through a floating silt barrier. The treated water flows through a culvert and discharges into the Chipola River

Permitted Capacity: 9.7 million gallons per day (MGD)

1. PERMIT: In Compliance

Observation: FDEP Permit #FL0101192 was issued on September 27, 2013 for the operation of this facility and it expires on September 26, 2018. At the time of this inspection, the facility was in operation and a copy of the permit was on site and available for review.

2. COMPLIANCE SCHEDULES: Not Applicable

3. LABORATORY: In Compliance

Observation: The facility's contract laboratory, Water Spigot, performs effluent analyses for total suspended solids (TSS) and turbidity. Mr. Homer Sims, certified water plant operator, performs the pH calibration and analysis for the facility.

FDEP SOPs FT1000, FT1100, and FT1900:

Observation: The facility's hand-held pH meter is calibrated at least monthly, or more frequently as specified by the meter manufacturer, and the calibration of the meter is verified daily, with appropriate buffers.

Additional Comments: During calibration verification of the meter, if the values observed for pH, vary ± 0.1 standard units for pH it shall be assumed that the calibration of the meters is unstable. The cause of the instability must be determined and corrective actions must be taken to bring the meters into stable calibration, such as maintenance, repair or replacement.

4. SAMPLING: In Compliance

Observation: Permit Condition I.A.1: Effluent grab samples are being taken at the facility, in accordance with the facility permit.

5. RECORDS AND REPORTS: In Compliance

Observation: Permit Condition I.B.3: A records review for the May 2015 effluent monitoring event indicated that information and data on chain of custody sheets, laboratory reports and Discharge Monitoring Reports (DMRs) were consistent. DMRs are being submitted to the Department in a timely manner.

Observation: The facility's Best Management Practice (BMP) Plan was on site and available for review. It was written and designed by a certified engineer, and it adequately identifies, contains and addresses the following:

Current staffing, sites and operations; narrative description of the facility; plots, plans, drawings and/or maps; area, systems or components with the potential to release pollutants to surface waters (due to equipment failure, improper operation or natural phenomena); prediction of the direction, flow rate and total quantity of pollutants which could be discharged from the facility; and, specific procedures to prevent pollutants from reaching State waters.

Additional Comments: The new electronic DMR system, EzDMR, is now available. We encourage facilities to use the new system. To register, visit the DEP Business Portal at <http://www.fldepportal.com/go/>. Please note that all previous and new Certifiers (those submitting the DMR) will also need to submit new hardcopy Electronic Signature Agreement, which can be downloaded from the Portal. For more information, please contact us at EzDMRAdmin@dep.state.fl.us.

6. FACILITY SITE REVIEW: In Compliance

Observation: Record drawings and a site plan were on site and they contained legible grading and elevation information on them; measures/structures were in place to prevent entry of unauthorized individuals; site grading directs all wastewater and stormwater to swales/settling ponds; and, settling pond discharge points function properly.

7. FLOW MEASUREMENT: In Compliance

Observation: Flows are estimated at the discharge culvert by timing the water velocity at the culvert and comparing the level/velocity to the chart developed by David Melvin Engineering.

8. OPERATION AND MAINTENANCE: In Compliance

Observation: The frequency of preventive maintenance inspections for this facility is daily when operating. Preventive maintenance inspections are frequent enough for proper operation. When

preventive maintenance issues arise, they are addressed immediately upon discovery if possible. Preventive maintenance records are being kept on site.

9. EFFLUENT QUALITY: In Compliance

Observation: Permit Condition I.A.1: A review of the DMRs for the period from January 2014 to May 2015 indicated no violations of effluent quality requirements or permit limits.

10. EFFLUENT DISPOSAL: Out of Compliance

Surface Water Discharge D-001: An existing 9.7 MGD estimated annual average daily flow, discharge of wastewater from the man-made lake to the Chipola River, WBID 51D, Class III freshwater, Special OFW, via Outfall D-001.

Surface Water Discharge D-002: An existing wastewater and stormwater discharge from Sedimentation Basin No. 5 to surface waters in the inactive mining quarry, thence to Rocky Creek, WBID 309 and ultimately to the Chipola River, WBID 51D, Class III freshwater, Special OFW, via Outfall D-002. Discharge is allowed whenever rainfall events cause an overflow of wastewater from the facility, which is designed and constructed, and is operated and maintained, to contain all process-generated wastewaters plus the runoff from a 25-year, 24-hour rainfall event.

Deficiency: At the time of the inspection, it was observed that the well water used in the rock washing/classifying process flowed to a sedimentation basin as designed, but from there it continued to flow to the inactive mining quarry and discharged directly to Rocky Creek, completely bypassing D-002. Since that time, the facility installed structures in the inactive mining quarry to block the direct discharge of wastewater to Rocky Creek.

Corrective Action: Since the wastewater flow has been modified, the facility is required to submit a minor permit revision. Please contact Bill Evans at (850) 595-0584 or by email at Bill.Evans@dep.state.fl.us for additional information. The revision shall include a revised Mine Site Plan, line drawing of the wastewater flow and description of the washing/classifying wastewater discharge, modifications made to contain the discharge within the mine preventing a discharge to Rocky Creek. Also, include on the Site Plan and description use of the old mine pits for filling overburden and preventing a discharge from that activity to Rocky Creek. Describe use of BMPs/turbidity barriers to prevent violations of turbidity in Rocky Creek from the berms established across the old mine pits. There is a \$250 application fee for the minor permit revision.

11. BIOSOLIDS/SLUDGE: Not Applicable

12. GROUNDWATER: Not Applicable

13. SANITARY SEWER OVERFLOW (SSO) SURVEY: Not Applicable

Additional Comments: Sanitary sewer overflow regulations only apply to domestic wastewater facilities. All industrial or domestic facilities however must report any unauthorized releases of wastewater (spills) to the Department. This requirement is applicable to all facilities with a discharge. If a spill is less than 1,000 gallons, and is not expected to reach surface waters, the report may be made to the District Office at (850) 595-0659 or (850) 595-0673, or to the State Watch Office (SWO) at (800) 320-0519. If the spill is 1,000 gallons or more, and/or if the spill (of any size) reaches surface waters, the report must be made to the SWO. If there is a question whether or not a spill has reached (or will reach) surface waters, the facility should err on the side of safety and report the spill to the SWO.

14. OTHER: Not Applicable